

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY
DIVISION
Case No.: 2024-001507-DC
Hon. Jenny L. McNeill

EMERGENCY MOTION FOR ENFORCEMENT OF PARENTING TIME

PURSUANT TO MCL 552.641(a), MCL 552.644, and MCR 3.211(C)

Filed by Plaintiff, Andrew James Pigors

NOW COMES Plaintiff, Andrew James Pigors, in pro per, and respectfully moves this Honorable Court for immediate enforcement of the existing parenting time order, based on verified and repeated violations by Defendant, Emily Watson, as outlined below:

I. INTRODUCTION & BACKGROUND

1. Plaintiff is the biological father of Lincoln David Watson (DOB: November 9, 2022).
 2. Pursuant to prior court orders, Plaintiff is entitled to parenting time on alternating weekends and designated holidays.
 3. Defendant has repeatedly interfered with Plaintiff's lawful parenting time, despite the existence of a valid order.
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II. LEGAL BASIS FOR RELIEF

4. Pursuant to MCL 552.641(a) and MCL 552.644, a parent may petition the Court for enforcement of a parenting time order when the other parent has wrongfully interfered with or denied access.
 5. Plaintiff's AppClose communication log (Exhibit A) and Violation Chronology (Exhibit H) detail multiple violations committed by Defendant.
 6. These violations include willful withholding of parenting time, refusal to exchange the child, and hostile communications such as "No," "Not happening," and "Already made up."
 7. These actions constitute a pattern of alienation and obstruction, actionable under Michigan law.
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III. DOCUMENTED VIOLATIONS

8. Defendant's specific violations include:
 - March 26 to May 2, 2024 – Full parenting time denial for five (5) continuous weeks.
 - April 6–7, 2024 – Refusal of scheduled exchange.
 - April 20–21, 2024 – Denial with “Not happening” text (Exhibit R).
 - Easter Sunday 2025 – Holiday parenting time blocked.
 - November 9, 2024 – Plaintiff denied parenting time on child's birthday.
 9. These actions violate MCL 722.27a(9) and justify enforcement under MCL 552.641(a) and MCL 552.644.
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IV. EMERGENCY NATURE OF THIS MOTION

10. These repeated denials have resulted in emotional harm to the minor child and have unjustly stripped Plaintiff of his court-ordered rights.
 11. The repeated refusal to follow the parenting time order demonstrates a willful disregard for judicial authority and a need for immediate intervention to prevent further harm.
 12. Emergency relief is appropriate and necessary under MCR 3.211(C) and MCL 552.645.
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V. REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

1. Schedule an Emergency Show Cause Hearing within 14 days per MCL 552.645(1); Or Combine with the DeNovo hearing April 28th 2025.
2. Order Defendant to appear and show cause why she should not be held in contempt under MCL 552.644 and MCR 3.606(A);
3. Award compensatory parenting time for the following periods:
 - Five (5) weekends
 - March 26th-May 5th 2024
 - October 20th- November 7th-8th- 9th, 2024
 - Easter weekend April 6th-May 2nd, 2025
4. Award pro-se attorney fees, lost wages, and court costs to Plaintiff, and any other monetary relief deemed just and appropriate.

5. Enter any further relief deemed just and appropriate, including sanctions under MCR 1.109(E)(5) and MCL 552.644(2)(c).

Respectfully submitted,
Andrew James Pigors
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Date: April 24, 2025